IN THE NATIONAL COMPANY LAW TRIBUNAL

SPECIAL BENCH NEW DELHI

CA-(CAA)-120(PB)/2018

IN THE MATTER OF COMPANIES ACT, 2013

In the matter of the scheme of the arrangement between Naman Broadcasting And Telecommunications Private Limited and Softline Media Network Private Limited and Sharpline Network Private Limited.

In the matter of Naman Broadcasting And Telecommunications Private Limited a company incorporated under the companies act, 1956 and having its registered office at 24/27-28, 2nd Floor, West Patel Nagar, New Delhi-110008.

...Applicant Company/ Transferor Company

AND

Softline Media Network Private Limited, a company incorporated under the companies act, 1956 and having its registered office at 259/A, 14 – BLK – B, New Delhi-110086.

...Applicant Company/Transferee Company No. 1

AND

Sharpline Network Private Limited, a company incorporated under the companies act, 1956 and having its registered office At 28/26 Basement East Patel Nagar, New Delhi-110008.

...Applicant Company/Transferee Company No. 2

Under Section 230-232 of the Companies Act, 2013

MEMO OF PARTIES

NAMAN BROAD CASTING AND TELECOMMUNICATIONS PRIVATE LIMITED
[CIN: U64200DL2008PTC175884]
Company Incorporated under Companies Act, 1956
Having its registered office at:
24/27-28, 2nd Floor, West Patel Nagar
NEW DELHI-110008
Through its authorized representative Director:
Mr. Arpan Gupta

..... TRANSFEROR COMPANY - (APPLICANT COMPANY)

SOFTLINE MEDIA NETWORK PRIVATE LIMITED
[CIN: U92412dl2007PTC161326]
Company Incorporated under Companies Act 1956
Having its registered office at:
259/A, 14 – BLK – B
NEW DELHI-110086
Through its authorized representative and Director:
Mr. Paras Shah

...TRANSFEREE COMPANY No. 1 - (APPLICANT COMPANY)

SHARPLINE NETWROK PRIVATE LIMITED

[CIN: U74300DL1999PTC100396]
Company Incorporated under Companies Act 1956
Having its registered office at:
28/26 BASEMENT EAST PATEL NAGAR
NEW DELHI-110008
Through its authorized representative and Director:
Ms. Pooja Aggarwal
...TRANSFEREE COMPANY No. 2 - (APPLICANT COMPANY)

Order pronounced on 07.08.2018

CORAM:

Dr. DEEPTI MUKESH,
HON'BLE MEMBER (JUDICIAL)

SHRI SK MOHAPATRA,
HON'BLE MEMBER (TECHNICAL)

For the Applicants: Mr. VIVEK KUMAR, COMPANY SECRETARY

ORDER

Per Dr. Deepti Mukesh, Member (J)

1. This application is filed by the applicant companies herein, Naman Broadcasting And Telecommunications Private Limited (for brevity "Transferor Company"), with Softline Media Network Private Limited (for brevity "Transferee Company No. 1") and Sharpline Network Private Limited (for brevity "Transferee Company No. 2") under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement by way of demerger (hereinafter referred to as the "SCHEME") proposed between the applicants. The said Scheme is also annexed as Annexure "A" to the application. The applicants above named have sought, namely:

   (a) Dispense with the requirement for convening and holding of meeting of the Equity Shareholders of the Transferor Company and also to dispense with the requirement of issue and publication of notice for the same;

(b) The Transferor Company do not have any Secured Creditors and unsecured creditors;

(c) Dispense with the requirement for convening and holding of meeting of the Equity Shareholders of the Transferee Company and also to Dispense with the requirement of issue and publication of notice for the same;

(d) The Transferee Company do not have any Secured and Unsecured Creditors;

(e) Issue direction for permitting the filing of application, petition or any other documents as may be required, for the purpose of sanctioning the proposed Scheme of demerger between Naman Broadcastings And Telecommunications Private Limited (Transferor Company) and Softline Media Network Private Limited (Transferee Company No.1) and Sharpline Network Private Limited (Transferee Company No.2) and their respective shareholders and Creditors.

(f) Passing such other and further Orders as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the case.

2. An affidavit in support of the above application are submitted on behalf of the Transferor Company by one Mr. Arpan Gupta, for the Transferee Company No. 1 by Mr. Paras Shah and for the Transferee Company No. 2 by Ms. Pooja Aggarwal, being the Directors of the respective Companies.

3. The rational, and the benefits of the scheme as envisaged by the applicant companies are as follows:

   (i) requiring large capital resources which could be generated through known sources of finding such as:

      (a) Involvement of Strategic Collaborations
      (b) Private Equity Funding
      (c) Bank and financial Institution's Borrowings
      (d) Bank and financial Institution's Borrowings
      (e) Public Issues through listing of Bourses;

   (ii) requiring sector specific human resources in terms of distinctly specialized managers and professional experts;

   (iii) achieving synergic advantage and focus on core strength;

   (iv) making the administration easy and control systems more efficient;

   (v) maximizing its profits through optimum utilization of its own resources;

(vi) minimizing the administrative and operative cost by utilizing maximum available benefits; and

(vii) building high market capitalization which will provide financial edge, development and Futuristic plans.

4. The Transferor Company is a private limited company incorporated under the provisions of Companies Act, 1956 on 26th March 2008 with Registrar of Companies, New Delhi under the name and style of "Naman Broadcastings And Telecommunications Private Limited", vide CIN U 64200DL2008PTC175884.

5. The Authorized Share Capital of the Transferor Company is Rs. 1,25,00,000/- (Rupees One Crore And Twenty Five Lakhs Only) divided into 12,50,000 (Rupees Twelve Lakh And Fifty Thousand Only) Equity Shares of Rs.10/- (Rupees Ten only) each. The Paid-up Share Capital of the Transferor Company is Rs. 1,17,00,000/- (Rupees One Crore And Seventeen Lakhs Only) divided into 11,70,000 (Rupees Eleven Lakhs And Seventy Thousand Only) Equity Shares of Rs.10/- (Rupees Ten only) each.

6. The Transferee Company No. 1 is a private limited company incorporated under the provisions of Companies Act, 1956 on

29th March 2007 with Registrar of Companies, NCT of Delhi & Haryana under the name and style of "Softline Media Network Private Limited", vide CIN: U92412DL2007PTC161326.

7. The Authorized Share Capital of the Transferee Company No. 1 is Rs. 2,25,00,000/- (Rupees Two Crore And Twenty Five Lakhs Only) divided into 22,50,000 (Rupees Twenty Two Lac And Fifty Thousand Only) equity Shares of Rs.10/- (Rupee Ten only) each. The Paid-Up Share Capital of the Transferee Company No. 1 as on date is Rs. 2,04,00,000/- (Rupees Two Crore And Four Lac Only) divided into 20,40,000/- (Rupees Twenty Lacs And Forty Thousand only) Equity Shares of Rs.10/- (Rupee Ten only) each.

8. The Transferee Company No. 2 is a private limited company incorporated under the provisions of Companies Act, 1956 on 24th June 1999 with Registrar of Companies, NCT of Delhi & Haryana under the name and style of "Sharpline Network Private Limited", vide CIN: U74300DL1999PTC100396.

9. The Authorized Share Capital of the Transferee Company No. 2 is Rs. 2,50,00,000/- (Rupees Two Crore And Fifty Lac Only) divided into 25,00,000 (Rupees Twenty Five Lac Only) equity Shares of Rs.10/- (Rupee Ten only) each. The Paid-Up Share

Capital of the Transferee Company No. 2 as on date is Rs. 2,41,68,200/- (Rupees Two Crore And Forty one Lac And Sixty Eight Thousand And Two Hundred Only) divided into 24,16,820/- (Rupees Twenty Four Lac And Sixteen Thousand And Eighty Two Hundred Only) Equity Shares of Rs.10/- (Rupee Ten only) each.

10. The applicants have filed their respective Memorandum and Articles of Associations as well as their last Audited Annual Accounts for the year ended 31.03.2017and un-audited financial statements for the year as on 31.12.2017.

11. The Board of Directors of all the three Applicant companies have unanimously approved the proposed Scheme of demerger as contemplated above vide resolution dated 01.06.2018 passed in the meeting of Board of Directors of all three applicant companies and copies of resolutions passed thereon have been placed on record by the companies, at Annexure "K".

12. The appointed date as specified in the Scheme is 1st April, 2017 subject to the directions of this Tribunal.

13. It is further stated that no investigation proceedings are pending against any of the applicant companies under

Sections 210 or any other applicable provisions of the Companies Act, 2013 as on date.

14. It is further stated that the registered office of all the respective companies are within the limits of Registrar of Companies, NCT, New Delhi, hence this Tribunal has territorial jurisdiction to entertain and try this application.

15. As claimed by the applicants, the Transferor Company is having 4 Shareholders and all of them have given their respective consents by way of affidavits which are marked at Annexure "U". It is further represented that the Transferor Company has no Secured creditors and no Unsecured Creditors as on 31.03.2018. In relation to the shareholders of the Transferor Company, it seeks dispensation from convening and holding of the meetings in view of consent given by 100% shareholders by way of affidavit which is placed on record.

16. As claimed the Transferee Company No. 1 is having 2 Shareholders. It is represented that the Transferee Company No. 1 has no Secured Creditors and no Unsecured creditors, as on 31.03.2018. With respect to the shareholders, it seeks dispensation from convening and holding of the meetings in

view of consent given by 100% shareholders by way of affidavit which is placed on record.

17. As claimed the Transferee Company No. 2 is having 3 Shareholders. It is represented that the Transferee Company No. 2 has no Secured Creditors and no Unsecured creditors, as on 31.03.2018. In relation to the shareholders, it seeks dispensation from convening and holding of the meetings in view of consent given by 100% shareholders by way of affidavit which is placed on record.

18. Taking into consideration the submissions made and the documents filed herewith, we issue following directions with respect to convening and/or holding of the meetings or dispensing with the same of the Equity Shareholders, Preference Shareholders, Secured Creditors and Unsecured Creditors, and issue of notices including by way of paper publication as follows:-

A) In relation to the Transferor Company:

(i) With respect to Equity shareholders:

In view of consent affidavits, from 100% equity shareholders of the company, convening the meeting of shareholders/members is dispensed with.

(ii) With respect to Secured Creditor:

Since there is no Secured Creditor in the Company, the issue of convening a meeting does not arise.

(iii) With respect to Unsecured Creditors:

Since there is no Unsecured Creditor in the Company, the issue of convening a meeting does not arise.

B) In relation to Transferee Company No. 1:

(i) With respect to Equity shareholders:

In view of consent affidavits from 100% shareholders of the company, convening the meeting of shareholders/members is dispensed with.

(ii) With respect to Secured Creditor:

Since there is no Secured Creditor in the Company, the issue of convening a meeting does not arise.

(iii) With respect to Unsecured Creditors:

Since there is no Unsecured Creditor in the Company, the issue of convening a meeting does not arise.

C) In relation to Transferee Company No. 2:

(i) With respect to Equity shareholders:

In view of consent affidavits from 100% shareholders of the company, convening the meeting of shareholders/members is dispensed with.

(ii) With respect to Secured Creditor:

Since there is no Secured Creditor in the Company, the issue of convening a meeting does not arise.

(iii) With respect to Unsecured Creditors:

Since there is no Unsecured Creditor in the Company, the issue of convening a meeting does not arise.

The application stands allowed on the aforesaid terms. Let the petition for approval of the scheme of arrangement be filed within a period of seven days from the date of this order.

Sd/-

(SHRI SK MOHAPATRA)
MEMBER (TECHNICAL)

Sd/-

(DR. DEEPTI MUKESH)
MEMBER (JUDICIAL)